

**Superior Court of the State of California
County of Orange**

**Tentative Rulings
Law and Motion Calendar
Department C23
Honorable David J. Hesseltine**

Hearing Date and Time: May 21, 2026, at 2:00 p.m.

Court Reporters: Official court reporters (i.e., court reporters employed by the court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it is that party's responsibility to provide a court reporter, unless the party has a fee waiver and timely requests a court reporter in advance of the hearing (see link at end of this paragraph for further information). Parties must comply with the Court's policy on the use of privately retained court reporters, which may be found at the following link: [Civil Court Reporter Pooling](#). For additional information regarding court reporter availability, please visit the court's website at [Court Reporter Interpreter Services](#).

Tentative Rulings: The court endeavors to post tentative rulings on the court's website no later than 12:00 noon on the date of the afternoon hearing. Tentative rulings will be posted case by case on a rolling basis as they become available. Jury trials and other ongoing proceedings, however, may prevent the timely posting of tentative rulings, and a tentative ruling may not be posted in every case. Please do not call the department for tentative rulings if one has not been posted in your case.

The court will not entertain a request to continue a hearing or any document filed after the court has posted a tentative ruling.

Submitting on Tentative Rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5223. Please do not call the department unless **ALL** parties submit on the tentative ruling. If all sides submit on the tentative ruling and advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under California Rules of Court, rule 3.1312.

Non-Appearances: If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also may make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C23 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C23 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at

<https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5223 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

NO FILMING, BROADCASTING, PHOTOGRAPHY, OR ELECTRONIC RECORDING IS PERMITTED OF THE VIDEO SESSION PURSUANT TO CALIFORNIA RULES OF COURT, RULE 1.150 AND ORANGE COUNTY SUPERIOR COURT RULE 180.

#	Case Name	Tentative
1.	<i>Pasche vs. Ox Car Care, Inc.</i> 2026-01548650	Before the court is the petition by petitioner John Pasche (Petitioner) to confirm the arbitration award issued on February 4, 2026, in the amount of \$47,500 against respondent Ox Car Care, Inc. dba Ox Warranty Group (Respondent). As more fully set forth below, the hearing on the petition is CONTINUED TO JULY 9, 2026, AT 2:00 P.M. IN DEPARTMENT C23. Code of Civil Procedure Section 1290.4 provides, in pertinent part, as follows: "(a) A copy of the petition and a written notice of the time and place of the hearing thereof and any other papers upon which the petition is based shall be served in the manner provided in the arbitration agreement for the service of such petition and notice. [¶] (b) If the arbitration agreement does not provide the manner in which such service shall be made and the person upon whom service is to be made has not previously appeared in the proceeding and has not previously been served in accordance with this subdivision: [¶] (1) Service within this State shall be made in the manner provided by law for the service of summons in an action. . . ." There is no evidence showing the parties' agreement provided the manner for service of a petition to confirm an arbitration award. As such, we turn to Code of Civil Procedure Section 413.10, et. seq., which sets forth the procedure for service of a summons. Here, the proof of

		service attached to the petition shows the petition was served by email which does not comply with the requirements of section 413.10, et. seq. Service of summons by email is permissible only when authorized by a court order and there is no such order in this case. Furthermore, there is no proof of service showing notice of this hearing was served on Respondent by any means. Based on the foregoing, the hearing on the petition is CONTINUED as set forth above to allow for proper service. Petitioner's counsel is ordered to give notice of this ruling.
2.	<i>DeJesse vs. Rivera</i> <i>2025-01506697</i>	Before the court is the unopposed petition and motion to confirm arbitration award filed by petitioner Jeffrey DeJesse (Petitioner). As more fully set forth below, the motion is GRANTED. Petitioner's motion meets the requirements of Code of Civil Procedure sections 1285 and 1258.4. The petition attaches a copy of the parties' arbitration agreement, identifies the arbitrator, and attaches a copy of the arbitrator's final award, which awarded Petitioner the sum total of \$81,925.00 in attorney fees and costs, comprised of \$75,300.00 in attorney fees, and \$6,625.00 in costs against respondents Reynaldo Rivera and MRV Marketing, LLC (collectively, Respondents). (DiMercurio Decl. ¶¶ 8-10, Ex. B.) As the Motion complies with the requirements and has been duly served and filed, the court must confirm the award as made unless Respondents identify and establish a basis to vacate or correct the award. (Code Civ. Proc., § 1286.) Respondents filed no opposition to the petition or motion and did not move to correct or vacate the award. In fact, default has been entered in these proceedings against Respondents due to their failure to respond. By not responding to the petition and motion, Respondents are deemed to have admitted all the allegations of the petition and motion. (Code Civ Proc., § 1290.) Petitioner also requests post-award, prejudgment interest, which is permissible pursuant to Civil Code section 3287, subdivision (a). (<i>Pierotti v. Torian</i> (2000) 81 Cal.App.4th 17, 27.) The prejudgment interest on the \$75,300 award from the date of entry on June 3, 2025, through to the date of this motion hearing totals \$8,596.51. Based on the foregoing, the motion is GRANTED, the arbitration award is confirmed, and judgment shall be entered in favor of Petitioner and against Respondent in the

		total amount of \$90,522, which comes from the \$81,925.00 arbitration award plus \$8,596.51 in interest. Counsel for Petitioner is ordered to prepare and file a proposed judgment based on the above and to give notice of this ruling.
3.	<i>Stout Risius Ross, LLC vs. Omega Accounting Solutions, Inc.</i> 2026-01547660	Before the court is a petition to confirm contractual arbitration award filed on February 11, 2026, by petitioner Stout Risius Ross, LLC (Petitioner). By this petition, Petitioner seeks to confirm the arbitration award issued in its favor and against respondent Omega Accounting Solutions, Inc. by arbitrator Hon. Glenda Sanders (Ret.) on January 20, 2026. As set forth below, the petition is GRANTED. Any party to an arbitration in which an award has been made may petition the court to confirm, correct, or vacate that award. (Code Civ. Proc., § 1285.) A petition to confirm an arbitration award must “(a) Set forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement. [¶] (b) Set forth the names of the arbitrators. [¶] (c) Set forth or have attached a copy of the award and the written opinion of the arbitrators, if any.” (Code Civ. Proc., § 1285.4.) Pursuant to Code of Civil Procedure section 1286, if a petition to confirm an arbitration award is duly served and filed, “the court shall confirm the award as made, whether rendered in this state or another state, unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding.” Here, Petitioner duly served and filed its petition to confirm the arbitration award, and the petition complies with Code of Civil Procedure section 1285.4 by setting forth the name of the arbitrator—Hon. Glenda Sanders (Ret.) of JAMS—and attaching a copies of (1) the parties’ agreement which includes an arbitration clause and (2) the arbitration award. Respondent argues the petition fails to comply with Code of Civil Procedure section 1288.4, which requires a 10-day waiting period after service of the award on any petitioner, because Petitioner filed the petition on February 11, 2026, before serving the award on Respondent on March 24, 2026. Respondent misreads the statute. Under Code of Civil Procedure section 1283.6, it is the duty of the arbitrator to serve a signed copy of the award on each party to the arbitration. Code of Civil Procedure section 1288.4 provides: “No petition may be served and filed

		under this chapter until at least 10 days after service of the signed copy of the award upon the petitioner." (Emphasis added). Thus, the 10-day waiting period is triggered upon service of the award by the arbitrator on the petitioner, not service of the award by petitioner on the respondent. The petition states the award was served by the arbitrator on January 21, 2026, which is 10 days before the filing of the petition on February 11, 2026. (ROA 2 at ¶ 9.) Respondent failed to produce any evidence to the contrary. Petitioner complied with Section 1288.4. Respondent provided no other argument why the petition should not be confirmed, nor did Respondent move to correct or vacate the award. Based on the foregoing, the GRANTS the petition and CONFIRMS the award. Petitioner's counsel is ordered to submit a proposed judgment and to give notice of this ruling.
4.	<i>Forward Financing LLC vs. Panoramic Security</i> 2026-01545900	Before the court is the petition by petitioner Forward Financing, LLC (Petitioner) to confirm the arbitration award in the amount of \$136,170.79 entered in its favor and against respondents Panoramic Security dba Scentaura and Myung Son, jointly and severally (collectively, Respondents). Code of Civil Procedure section 1290.2 provides, "A petition under this title shall be heard in a summary way in the manner and upon the notice provided by law for the making and hearing of motions, except that not less than 10 days' notice of the date set for the hearing on the petition shall be given." Once a party to an arbitration files a petition to confirm, correct, or vacate an award, a response must be filed and served within 10 days after service of the petition, unless a judge extends, or both parties agree to extend, this deadline. (Code Civ. Proc., § 1290.6). If a response is not filed by the deadline, the allegations of the petition are deemed admitted by the respondent. (Code Civ. Proc., § 1290.) Here, there has been no response to the petition by Respondents. Further, the court finds the petition complies with the requirements of Code of Civil Procedure section 1285.4. A copy of the Future Receipts Sales Agreement (FRSA) is attached as Exhibit 6(b) to the Petition. Section 10 of the FRSA contains the mandatory arbitration provision. The Petition sets forth the name of the arbitrator, Julie D. Elkins, Esq. Finally, a copy of the Resolute Systems

		arbitration Final Award dated February 2, 2025, is attached as Attachment 8(c). As the Petition complies with Code of Civil Procedure section 1285.4, and there has been no response to the Petition, the Petition is GRANTED and the arbitrator's Final Award is CONFIRMED. (Code Civ. Proc., § 1286.) Petitioner's counsel is ordered to submit a proposed judgment and give notice of this ruling.
5.	<i>Vista Point Trust I, a Delaware statutory trust vs. Optionwide Financial Corporation</i> 2026-01553437	Before the court is the unopposed petition to confirm arbitration award filed by petitioner Vista Point Trust I (Petitioner). As more fully set forth below, the petition is GRANTED. The court first notes, although timely served, the petition was prematurely filed pursuant to Code of Civil Procedure section 1288.4. The court nonetheless will proceed on the merits as respondent Optionwide Financial Corporation (Respondent) did not file any opposition, failed to establish any prejudice due to the premature filing, and expressly waived the right to challenge entry of judgment based on the stipulated arbitration award. A petition to confirm, correct, or vacate the award must: (1) set forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement; (2) set forth the names of the arbitrators; and (3) set forth or have attached a copy of the award and the written opinion of the arbitrators, if any. (Code Civ. Proc., § 1285.4.) If a petition or response under this chapter is duly served and filed, the court must confirm the award as made, whether rendered in this state or another state, unless it corrects the award and confirms it as corrected, vacates the award, or dismisses the proceeding. (Code Civ. Proc., § 1286.) Except for prematurely filing the Petition, Petitioner has complied with the requirements of the code. The arbitrator awarded Petitioner the sum of \$709,625.85 against Respondent. (Petition § 8, Ex. 8c.) Respondent waived any right to oppose the petition or contest a judgment thereon. (Petition § 8, Ex. 8c section 3.) The court will confirm the \$709,625.85 amount. Petitioner requested interest from the March 2, 2026, date the award was issued to the date of the May 21, 2026 hearing on the petition. This is permissible. (Civ. Code, § 3287; <i>Pierotti v. Torian</i> (2000) 81 Cal.App.4th 17, 27.)

		The court will award interest at the rate of \$194.42/day x 80 days for a total of \$15,553.44. Petitioner also requests \$435.00 in costs for the initial filing fee in this action, which is recoverable. (Code Civ. Proc., § 1293.2; <i>Austin v. Allstate Ins. Co.</i> (1993) 16 Cal.App.4th 1812, 1814.) Based on the foregoing, the petition is GRANTED and the relief described above may be included in the judgment confirming the award. Although Petitioner checked the box in the petition to seek an award of attorney fees, Petitioner also checked the box stating according to proof. Petitioner has not otherwise expressly sought attorney fees in any particular amount, has not cited any specific contractual provision authorizing an award of attorney fees, and has not submitted any evidence as to the amount of attorney fees incurred. As such, the court has not awarded any attorney fees at this time. To the extent any are sought for the court proceedings (as opposed to the arbitration proceedings), they will have to be sought through a post judgment motion. Counsel for Petitioner is ordered to submit a proposed judgment and to give notice of this ruling.
6.	<i>Rudat vs. Liu</i> <i>2026-01546329</i>	Before the court is the petition to vacate the arbitration award filed by petitioner Fred Rudat (Petitioner), and the opposition filed by respondent Di Liu (Respondent) seeking to confirm the same arbitration award. Specifically, Petitioner seeks to vacate the final arbitration award issued by arbitrator Michael J. Lancaster of Judicial Dispute Resolution served on the parties on October 27, 2025. In response, Respondent seeks confirmation of the award. For the reasons set forth below, the petition to vacate the award is DENIED and the request to confirm the award is GRANTED. Under the California Arbitration Act, Code of Civil Procedure section 1281.2 et. seq. (CAA), any party to an arbitration in which an award has been made may petition the court to confirm, correct, or vacate that award. (Code Civ. Proc., § 1285.) The petition must name as respondents all parties to the arbitration and may name as respondents any other person bound by the arbitration award. (<i>Ibid.</i>) A petition to correct or vacate an award must be served and filed within 100 days after the date the petitioner was served with a signed copy of the award. (Code Civ. Proc., § 1288; <i>Douglass v. Serenivision, Inc.</i> (2018) 20 Cal.App.5th 376,

		384.) The grounds for vacating an arbitration award are statutorily limited. Under the CAA, the court shall vacate the award if the court determines, inter alia, that “[t]he award was procured by corruption, fraud or other undue means” and “[t]here was corruption by any of the arbitrators.” (Code Civ. Proc., § 1286.2, subds. (a)(1),(2).) Here, Petitioner duly served and timely filed its petition to vacate the award. The petition includes a copy of the arbitration agreement and attaches a copy of the final award. (Petition, Attachment 4(B), 8(C).) Although Respondent argues the petition is untimely because it was filed 102 days after service of the award, the final award was served by email (and mail), which extends the time to file the petition by two court days. (Code Civ. Proc., § 1010.6, subd. (2)(B).) Nevertheless, Petitioner provided no evidence, argument, or authority showing the arbitration award itself was improperly procured. Rather, Petitioner argues the arbitrator provided the final award to JDR on February 4, 2025, but JDR refused to serve the award until full payment of an invoice not agreed upon by the parties. (Petition, Attachment 10(C)(2).) Any purported “fraud” or “corruption” occurred after the final award was rendered. That JDR conditioned service of the award on payment of what Petitioner believes is an excessive invoice is not grounds for vacatur under Code of Civil Procedure section 1286.2. Moreover, Petitioner has not provided any declaration or other admissible evidence to support any of these claims. The petition to vacate the final award therefore is DENIED. In the Opposition, Respondent asks the Court to confirm the final award attached as Exhibit 8(c) to the petition and enter judgment thereon. Under the CAA, “[a] response to a petition . . . may request the court to dismiss the petition or to confirm, correct or vacate the award.” (Code Civ. Proc., § 1285.2.) The request to confirm the award is GRANTED. Respondent’s counsel is ordered to submit a proposed judgment and to give notice of this ruling.
7	<i>Michael Basso, Trustee of the Basso Family Trust vs. Huajin Zhou</i> 2026-01550302	Before the court is a petition to compel arbitration filed by petitioners Michael Basso, Donna Basso, and Joseph Michael Basso, trustees of the Basso Family Trust (collectively, Petitioners) and seeking to compel respondent Huajin Zhou (Respondent) to arbitrate Petitioner’s claims pursuant to

		the parties' arbitration agreement. As set forth below, the petition is GRANTED. The court is required to order arbitration if it determines an agreement to arbitrate the controversy exists and a party to the agreement refuses to arbitrate that controversy, unless a valid defense to enforcement exists. (Code Civ. Proc., § 1281.2, subds. (a)-(c).) The moving party bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. (<i>Little v. Pullman</i> (2013) 219 Cal.App.4th 558, 565.) Here, Petitioners produced evidence Respondent agreed to binding arbitration in the parties' Residential Purchase Agreement and Joint Escrow Instructions (RPA) as to "any dispute or claim in Law or equity arising between them out of this Agreement or any resulting transaction" (Petition, Ex. 1 ¶ 28(A).) This dispute arises out of the RPA. Petitioners demanded arbitration, but Respondent refused. (Verified Petition ¶¶ 7-9.) Respondent failed to file an opposition disputing enforceability of the arbitration agreement. The court therefore GRANTS the petition and Respondent is hereby ordered to submit to arbitration regarding Petitioners' claims consistent with the parties' arbitration agreement. Given these proceedings were commenced simply as a petition seeking to compel arbitration, the proceedings are now complete given Respondent has been ordered to arbitrate the dispute. A new petition will be required for any future relief, such as a petition to confirm, vacate, or correct any future arbitration award. Petitioners' counsel is ordered to give notice of this ruling.
8.	Rodriguez vs. Progressive Select Insurance Company 2026-01546894	Before the court is the petition of petitioner Jeison Snider Serna Rodriguez (Petitioner) to compel respondent Blue Hill Specialty Insurance Company, erroneously sued as Progressive Select Insurance Company (Respondent), to submit to arbitration on Petitioner's underinsured motorist claim under Petitioner's insurance policy with Respondent. Petitioner's petition is defective and deficient in multiple regards. First, Petitioner fails to establish the existence of an arbitration agreement between the parties or its terms. "The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the

	burden of proving by a preponderance of the evidence any fact necessary to its defense.” (<i>Engalla v. Permanente Medical Group, Inc.</i> (1997) 15 Cal.4th 951, 972; <i>Green Tree Financial Corp.-Alabama v. Randolph</i> (2000) 531 U.S. 79, 91-92.) Here, Petitioner cites Insurance Code §11580.2, subdivision (f), which sets forth the requirement that an automobile insurance policy or an endorsement to the policy must provide for arbitration of uninsured or underinsured motorist claims. The terms of the arbitration agreement, however, are not set forth and the policy is not attached. Moreover, California Rules of Court, rule 3.1330 requires any petition to compel contractual arbitration must state the provisions of the written agreement and the paragraph that provides for arbitration, and the provision must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference. Here, the terms of the parties’ arbitration agreement are not alleged verbatim in the petition and a copy is not attached. Although Insurance Code section 11580.2 requires all automobile insurance policies to include a provision for arbitration of uninsured or underinsured motorist disputes, that does not excuse compliance with these requirements. Moreover, the law permits the parties to agree to arbitrate more than the statutory minimum issues as well as other terms of the arbitration, and the court cannot determine the scope of the arbitration without a copy of the agreement. Second, section 11580.2, subdivision (f), requires any petition for arbitration to contain a declaration, under penalty of perjury, stating whether (i) the insured has a workers' compensation claim; (ii) the claim has proceeded to findings and award or settlement on all issues reasonably contemplated to be determined in that claim; and (iii) if not, what reasons amounting to good cause are grounds for the arbitration to proceed immediately. Petitioner failed to provide any such declaration. Finally, Petitioner failed to properly serve the petition. Code of Civil Procedure section 1290.4 requires a petition to compel arbitration to be served in the same manner as a summons and complaint unless the parties’ agreement provides for an alternative means of service. Here, Petitioner did not provide a copy of the parties’ agreement and therefore failed to show they agreed to any means of
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		service other than personal service. The proof of service Petitioner filed shows service was made by email. That is not sufficient. Respondent, however, has waived or corrected these deficiencies. Respondent states it does not oppose being ordered to arbitration. Respondent included as part of one of its exhibits to the opposition a declaration Petitioner's counsel apparently served on Respondent regarding the non-existence of any worker's compensation claim. And Respondent filed an opposition without any objection to the method of service, thereby waiving the service defect. Accordingly, based on Respondent's agreement and willingness to submit the claim to arbitration, the petition is GRANTED and Respondent, along with Petitioner, are ordered to submit their underinsured motorist dispute to arbitration in accordance with Plaintiff's insurance policy with Respondent. Petitioner's petition also includes a request for attorney fees, but fails to cite any statutory or contractual basis for an attorney fee award. Moreover, to the extent there was any legal basis for an award of attorney fees, Petitioner failed to present in evidence to establish an amount to be awarded, such as a declaration by counsel or billing statements. Accordingly, the request for attorney fees is DENIED. Petitioner's counsel is ordered to give notice of this ruling.
9.	<i>Buchalter, A Professional Corporation vs. Clark</i> 2025-01529125	OFF CALENDAR based on request for dismissal filed on May 19, 2026.
10.	<i>Michael A Plaia vs. Alina V Plaia</i> 2020-01175527	Before the court is the motion of judgment creditor Michael A. Plaia (Creditor) to compel further responses from judgment debtor Alina V. Plaia (Debtor) to Creditor's requests for production of documents, set one. As more full set forth below, the motion is GRANTED. As an initial matter, the court notes the proof of service for the motion lists an incorrect mailing address for Debtor (92 Brandisi versus 92 Brindisis). The motion, however, also was served on Debtor by email pursuant to an email service agreement between the parties, and at the same email address for Debtor as listed in the court's records. Moreover, Debtor filed an untimely opposition without

		objecting to service thereby waiving any service defect. The court thus determines the motion was properly served. Code of Civil Procedure section 708.030 provides, in relevant part: “(a) The judgment creditor may demand that any judgment debtor produce and permit the party making the demand, or someone acting on that party’s behalf, to inspect and to copy a document that is in the possession, custody, or control of the party on whom the demand is made in the manner provided in Chapter 14 (commencing with Section 2031.010) of Title 4 of Part 4, if the demand requests information to aid in enforcement of the money judgment. The judgment debtor shall respond and comply with the demand in the manner and within the time provided by Chapter 14 (commencing with Section 2031.010) of Title 4 of Part 4. . . . [¶] (c) Inspection demands served pursuant to this section may be enforced to the extent practicable, in the same manner as inspection demands in a civil action.” (Code Civ. Proc., § 708.030(a), (c).) Good cause has been shown for the documents sought by the requests as the requests are generally tailored to aid in enforcement of the money judgment in this matter. Debtor failed to file any timely opposition or otherwise offer sufficient argument and evidence justifying her objections. (<i>Coy v. Superior Court</i> (1962) 58 Cal.2d 210, 220-221; <i>Kirkland v. Superior Court</i> (2002) 95 Cal.App.4th 92, 98; <i>Costco Wholesale Corp. v. Superior Court</i> (2009) 47 Cal.4th 725, 733.) The court acknowledges Debtor filed an untimely opposition to the motion at 7:43 p.m., on May 19, 2026—i.e., less than 48 hours before the hearing. Debtor claims her opposition is untimely because she mis-calendared the hearing date as June 21, 2026, and therefore asks the court to consider it. The court does not find this explanation credible. The court previously cautioned all parties to take special care to ensure all documents are timely and properly filed and served because prior documents were previously filed and served in an untimely and improper manner leading to questionable requests to continue or put off hearings. (See July 17, 2025 Minute Order.) Accordingly, the court exercises its discretion not to consider the untimely opposition. Nonetheless, nothing in the opposition would change the court’s ruling. The opposition acknowledges Creditor’s right to conduct discovery in aid of enforcing the judgment, but asks the court to limit the requests in terms of scope and
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		relevant time period. Debtor points to the court's prior July 2025 ruling relating to subpoenas Creditor served, but nothing in that ruling limited Creditor's rights to seek discovery from Debtor. Debtor has not presented any evidence, authority, or argument that supports her request to narrow the requests. The court finds the time period sought to be appropriate, and there is nothing inappropriate about Creditor seeking from Debtor any documents in Debtor's possession, custody, or control relating to an entity in which she may hold an interest. The request is appropriately directed to Debtor, not a third party, and requires Debtor to produce documents in her possession, custody, or control. Based on the foregoing, the motion is GRANTED. Debtor is ordered to serve verified, code-compliant, further written responses without objections to the subject discovery and to produce all responsive documents within her possession, custody, and control all within 30 days of service of notice of this order. Sanctions are warranted as Debtor did not timely oppose the motion and nonetheless failed to offer any substantial justification for her failure to fully respond to the subject discovery. (Code Civ. Proc., § 2031.310(h).) The court imposes a reasonable monetary sanction of \$1,947.50 against Debtor, payable to Creditor, through his counsel of record, within 30 days of service of notice of this order. Counsel for Creditor is ordered to give notice of this ruling.
11.	<i>In Re: Monarch Bay Terrace Property Owners Association</i> <i>2026-01547636</i>	Before the court is the "Petition to Approve Amendment to Consolidate Homeowners Association CC&R'S by Reducing Required Voting Percentage [Corp. Code § 7515]" filed on February 13, 2026, by petitioner Monarch Bay Terrace Property Owners Association (Petitioner). As more fully set forth below, the petition is DENIED for Petitioner's failure to provide adequate and proper notice as ordered by the court. Upon filing the petition, Petitioner filed a request for an ex parte order setting the hearing on the petition. On March 10, 2026, after hearing from Petitioner about the governing law and further discussing with Petitioner how to give notice of this hearing, the Court signed the "Order Setting Hearing on Petition and Notice Requirement" setting forth the specific requirements for Petitioner to provide

		notice to all members regarding the petition and the hearing thereon. Specifically, the court ordered: "No later than April 6, 2026, Petitioner shall serve by first class mail a Notice of Hearing and a copy of this Order to each of the owners of the residential property within the seven tracts of Monarch Bay Terrace, as defined in the Petition. The notice shall include the following: (1) the date, time, and location of the hearing; (2) a brief description of the subject of the Petition; (3) a copy of the Petition's main pleading, including the proposed revised CC&Rs; and (4) a brief description of the other components of the Petition and the url of a website at which the entire Petition and all supporting documents may be read and downloaded." The court further ordered Petitioner to file proof of such service not later than May 1, 2026. Petitioner has woefully failed to comply with the court's order. On April 14, 2026, Petitioner filed a proof of service that failed to identify what documents were served and simply attached a lengthy list of names and addresses. On April 30, 2026, Petitioner filed a "Proof of Service [Superseding]." That filing actually included three proofs of service plus what appears to be the same "Service List" that was attached to the earlier proof of service. This second proof of service identified the petition as the document that was served. Much more was required to comply with the court's order. There is no indication Petitioner served a Notice of Hearing as ordered by the court. No such document was filed with the court, and no such document was identified on any proof of service. As stated in the order, that notice was required to include several pieces of information. First, it was required to include the date, time, and location of the hearing. There is nothing in the record to show anyone was given notice of today's hearing. The petition that was served does not provide any notice of hearing. Second, it was required to provide a brief description of the subject of the petition. There is nothing in the record to show any members were given such a description. Third, the notice was to include a copy of the petition, including a copy of the proposed revised CC&Rs. This appears to be the only provision with which Petitioner complied. Finally, the notice was to include a brief description of any other components of the petition and a URL for a website at which the entire petition and all supported documents could be read and
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		downloaded. There is nothing in the record to show this was done. Furthermore, there is no evidence to show who the individuals identified on the "Service List" are. Presumably, they are all the members of the homeowners association and the addresses lists are the mailing addresses they have provided to Petitioner. There, however, is no evidence in the record to support that presumption. As such, Petitioner has failed to show that the limited notice it provided was given "to each of the owners of the residential property within the seven tracts of Monarch Bay Terrace, as defined in the Petition" as the court ordered. The court further notes Petitioner's reply identifies an additional opposition it received and acknowledges that opposition was not filed with the court. Nonetheless, Petitioner has not attached a copy of that opposition to the reply or otherwise provided a copy to the court. Many of the owners are not attorneys and are not familiar with civil procedure or how to file something with the court. Based on Petitioner's many failures to comply with the court's specific order regarding notice of this hearing, the petition, and the specific relief being sought, the petition is DENIED. Petitioner's counsel is ordered to give notice of this ruling to all owners.
12.	<i>NNN Capital Fund I, LLC vs. Mikles</i> <i>2017-00910991</i>	Hearing VACATED as stated in the minute order dated May 20, 2026.
13.	<i>Shanghai Breeze Technology Company, Ltd. vs. Willard Marine, Inc.</i> <i>2022-01252832</i>	Before the court is the motion to amend judgment to add GEM Ventures Ltd. (GEM) as a co-judgment debtor as alter ego of respondent and judgment debtor Willard Marine, Inc. (Respondent) filed by petitioner and judgment creditor Shanghai Breeze Technology Company, Ltd. (Petitioner). As more fully set forth below, the motion is DENIED. Code of Civil Procedure section 187 provides, "When jurisdiction is, by the Constitution or this Code, or by any other statute, conferred on a Court or judicial officer, all the means necessary to carry it into effect are also given; and in the exercise of this jurisdiction, if the course of proceeding be not specifically pointed out by this Code or the statute, any suitable process or mode of proceeding

		may be adopted which may appear most conformable to the spirit of this Code.” “The authority provided to courts by section 187 includes the power to add a judgment debtor where a person or entity is an alter ego of the original judgment debtor.” (<i>Butler America, LLC v. Aviation Assurance Co., LLC</i> (2020) 55 Cal.App.5th 136, 145.) “Amending a judgment to add an alter ego of an original judgment debtor “is an equitable procedure based on the theory that the court is not amending the judgment to add a new defendant but is merely inserting the correct name of the real defendant.”” (<i>Angel Lynn Realty, Inc. v. George</i> (2025) 114 Cal.App.5th 655, 663 (<i>Angel Lynn Realty</i>).) ““Usually, a disregard of the corporate entity is sought in order to fasten liability upon individual stockholders. . . .”” (<i>Toho-Towa Co., Ltd. v. Morgan Creek Productions, Inc.</i> (2013) 217 Cal.App.4th 1096, 1107 (<i>Toho-Towa</i>).) However, “[a] court may also disregard the corporate form in order to hold one corporation liable for the debts of another affiliated corporation when the latter “is so organized and controlled, and its affairs are so conducted, as to make it merely an instrumentality, agency, conduit, or adjunct of another corporation.” [Citations.] Thus, where there is ‘such domination of finances, policies and practices that the controlled corporation has, so to speak, no separate mind, will or existence of its own and is but a business conduit for its principal’ [citation], the affiliated corporations may be deemed to be a single business enterprise, and the corporate veil pierced. ‘Under the “single business enterprise” doctrine, separate corporations may operate with integrated resources in pursuit of a single business purpose.’ [Citation.] ‘The “single-business-enterprise” theory is an equitable doctrine applied to reflect partnership-type liability principles when corporations integrate their resources and operations to achieve a common business purpose.’ [Citations.]” (<i>Id.</i> at pp. 1107-1108.) “In California, common principles apply regardless of whether the alleged alter ego is based on piercing the corporate veil to attach liability to a shareholder or to hold a corporation liable as part of a single enterprise. In both cases, ‘[t]he law as to whether courts will pierce the corporate veil is easy to state but difficult to apply.’ [Citation.] Because it is founded on equitable principles, application of the alter ego ‘is not made to depend upon prior decisions involving factual situations which appear to be similar. . . . “It is the general rule that the conditions
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		under which a corporate entity may be disregarded vary according to the circumstances of each case.” [Citations.] Whether the evidence has established that the corporate veil should be ignored is primarily a question of fact which should not be disturbed when supported by substantial evidence. [Citations.]” (<i>Toho-Towa, supra</i>, 217 Cal.App.4th at p. 1108.) To prevail on a motion to amend a judgment to add a nonparty, “the judgment creditor must show, by a preponderance of the evidence, that “(1) the parties to be added as judgment debtors had control of the underlying litigation and were virtually represented in that proceeding; (2) there is such a unity of interest and ownership that the separate personalities of the entity and the owners no longer exist; and (3) an inequitable result will follow if the acts are treated as those of the entity alone.”” “In determining whether there is a sufficient unity of interest and ownership, the court considers many factors, including ‘the commingling of funds and assets of the two entities, identical equitable ownership in the two entities, use of the same offices and employees, disregard of corporate formalities, identical directors and officers, and use of one as a mere shell or conduit for the affairs of the other. [Citation.]’ [Citation.] Inadequate capitalization of the original judgment debtor is another factor. [Citation.] No single factor governs; courts must consider all of the circumstances of the case in determining whether it would be equitable to impose alter ego liability. [Citation.]” (<i>Highland Springs Conference Training Center v. City of Banning</i> (2016) 244 Cal.App.4th 267, 280-281 (<i>Highland Springs</i>).) An inequitable result is shown as a matter of law where the judgment debtor is insolvent due to the actions of an alter ego. (<i>Relentless Air Racing, LLC v. Airborne Turbine Ltd. Partnership</i> (2013) 222 Cal.App.4th 811, 816.) ““Application of the alter ego doctrine does not depend upon pleading or proof of fraud.” [Citations.] It is enough that ‘adherence to the fiction of the separate existence of the corporation would promote injustice or bring about inequitable results.’ [Citation.]” (<i>Angel Lynn Realty, supra</i>, 114 Cal.App.5th at p. 1109, fn. 5.) “Alter ego ‘is an extreme remedy, sparingly used.’ [Citation.] “The standards for the application of alter ego principles are high, and the imposition of [alter ego] liability . . . is to be exercised reluctantly and cautiously.” [Citation.] Still, “[t]he greatest liberality is to be
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encouraged” in allowing judgments to be amended to add the ‘real defendant,’ or alter ego of the original judgment debtor, “in order to see that justice is done.” [Citations.]” (*Highland Springs, supra*, 244 Cal.App.4th at p. 281.)

Here, Petitioner failed to show GEM is the alter ego of Respondent. As to unity of ownership and interest, Petitioner relies solely on the fact GEM and Respondent have identical officers and directors and identical equitable ownership. Petitioner submitted evidence showing GEM owns 100% of Respondent and three of GEM’s principals are officers and directors of Respondent. (See Liberto Decl., Exhs. 6-7; Brown Decl. ¶5 [ROA 138].) Petitioner offers no other evidence of unity of interest and ownership such as comingling of funds, use of the same offices, disregard of corporate formalities, or use of one entity as a mere shell for the affairs of another. As stated above, there is no one essential factor that must be established to satisfy this element; rather, it is a totality of the circumstances analysis. Here, the evidence of ownership, common officers and directors, and participation in the arbitration is not enough. Indeed, the court finds the evidence submitted by Petitioner insufficient to show such a unity of interest and ownership between GEM and Respondent that the separate personalities of the two no longer exist.

Petitioner also failed to present sufficient evidence demonstrating an inequitable result will follow if the acts complained of are treated as those of Respondent alone. For instance, no evidence is offered showing Respondent is undercapitalized and has no prospect of satisfying the judgment in this matter. Indeed, no financial information whatsoever is presented. Petitioner argues the judgment must be amended to avoid the inequitable result of GEM escaping liability for the judgment. But this argument presupposes GEM is the alter ego of Respondent, which has not been shown. Petitioner also argues amendment of the judgment is necessary to avoid the inequitable result of Respondent’s evasion of enforcement of the judgment. As Respondent points out, “[d]ifficulty in enforcing a judgment or collecting a debt does not satisfy” the inequitable result element. (*Sonora Diamond Corp. v. Superior Court* (2000) 83 Cal.App.4th 523, 539.) “The alter ego doctrine does not guard every unsatisfied creditor of a corporation but instead affords protection where some conduct amounting to bad faith makes it inequitable for the corporate owner to hide behind the corporate form.” (*Ibid.*) There evidence is not sufficient to establish an inequitable result.

		Based on the foregoing, the motion is DENIED. Counsel for Respondent is ordered to give notice of this ruling.
14.	<i>Claim of Macedo</i> 2025-01533149-	Before the court is a motion for default and default judgment of forfeiture of \$98,171 in U.S. Currency filed by petitioner The People of the State of California (Petitioner). As more fully set forth below, the Motion is GRANTED. On or about August 30, 2025, \$98,171 in United States currency was seized pursuant to Health and Safety Code section 11470, subdivision (f), for forfeiture for violation of Health and Safety Code sections 11351 and 11378. The petition in this case was brought pursuant to Health and Safety Code section 11470, et. seq. and was timely filed within one year of seizure. (Health & Safety Code, § 11488.4(a).) Health and Safety Code section 11488.5, subdivision (a), grants any claimant to the property subject to forfeiture 30 days from the last publication of notice of the forfeiture proceedings or 30 days after receipt of actual notice to file a verified claim for the property. Section 11488.5, subdivision (b)(1), provides, "If at the end of the time set forth in subdivision (a) there is no claim on file, the court, upon motion, shall declare the property seized or subject to forfeiture pursuant to subdivisions (a) to (g), inclusive, of Section 11470 forfeited to the state. In moving for a default judgment pursuant to this subdivision, the state or local governmental entity shall be required to establish a prima facie case in support of its petition for forfeiture. There is no requirement for forfeiture thereof that a criminal conviction be obtained in an underlying or related criminal offense." "Health and Safety Code section 11488.4 provides for three types of notice of forfeiture proceedings. [Citation.] First, a person from whom property is seized and who is named in a receipt for the seized property is entitled to service of process of the petition of forfeiture. (Health & Saf. Code, § 11488.4, subd. (c).) Second, notice of the seizure or of an intended forfeiture proceeding along with instructions for filing a claim is 'to be served by personal delivery or by registered mail upon any person who has an interest in the seized property or property subject to forfeiture other than persons designated in a receipt issued for the property seized.' (<i>Id.</i>, § 11488.4, subd. (c).) Finally, notice of a forfeiture action must be published once a week for three consecutive weeks in a newspaper of general circulation in the county of seizure. (<i>Id.</i>, § 11488.4, subd. (e).)"

		(<i>People v. Mendocino County Assessor's Parcel No. 056-500-09</i> (1997) 58 Cal.App.4th 120, 125.) Here, Petitioner personally served real-party-in-interest Refugio Macedo (Macedo) with the Petition for Forfeiture of Property, Civil Case Cover Sheet, and a blank Claim Opposing Forfeiture Form (MC 200), as well as the Notice of Seizure and Notice of Initiation of Judicial Forfeiture Proceedings on December 31, 2025. Macedo was the only person whose name appears on the receipt for the seized property, and therefore is the only person entitled to notice under the first or second types of service described in the preceding paragraph. Based on the foregoing, the court finds Petitioner adequately served Macedo. The motion also establishes Petitioner published notice of these proceedings for three consecutive weeks in the Orange County Reporter, thereby satisfying the requirements of Health and Safety Code section 11488.4, subdivision (e). No claim has been filed by any party asserting any interest in the seized property. Accordingly, pursuant to Health and Safety Code section 11488.5, subdivision (b)(1), Petitioner is entitled to a declaration the property is forfeited upon Petitioner making a prima facie showing of its right to the forfeiture. There is no requirement that a criminal conviction be obtained in an underlying or related criminal offense. Based on the uncontroverted declaration of Santa Ana Police Officer N. Valdenor #3849, the court finds Petitioner has established a prima facie case in support of its petition for forfeiture, and therefore Petitioner is entitled to a default judgment of forfeiture. Based on the foregoing, the motion is GRANTED. Petitioner's counsel is ordered to give notice of this ruling.
15.	<i>Baer vs. Tedder</i> <i>2014-00746312</i>	Before the court is the motion of plaintiff Dan W. Baer (Baer) for attorney fees on appeal. As more fully set forth below, the motion is GRANTED, albeit in a reduced amount of fees. This motion has its origins in a discovery motion that was heard and decided by a prior judicial officer in December 2020. In connection with that motion, the judicial officer awarded Baer \$10,475 in monetary discovery sanctions against defendant David H. Tedder (Tedder) and his counsel Robert K. Kent (Kent). Tedder and Kent appealed the decision imposing the sanctions against them.

		In the first appeal relating to the sanctions (G059832), the Court of Appeal affirmed the award of monetary sanctions against Tedder and Kent. Upon return to the trial court, Baer filed a motion to recover his attorney fees incurred in connection with the appeal. Another judicial officer granted that motion as to Tedder, awarding Baer \$113,532.50 in attorney fees, but denying the motion as to Kent. Tedder appealed, arguing there was no statutory basis for the award of attorney fees and the amount awarded was unreasonable. Baer also appealed, arguing the trial court erred in failing to make the award of appellate attorney fees against Tedder and Kent, jointly and severally. That second appeal resulted in a published appellate opinion, <i>Baer v. Tedder</i> (2025) 115 Cal.App.5th 1139. The 33-page appellate opinion (1) reduced the amount of the award from \$113,532.50 to \$101,805, but otherwise upheld the award against Tedder, and (2) found the trial court erred in denying the fee motion as to Kent. The Court of Appeal found the award of attorney fees was appropriate and authorized under Code of Civil Procedure sections 2023.030(a) and 2031.320(b). Upon remand, and consistent with the Court of Appeal’s decision, the trial court entered a new order granting the appellate attorney fee motion in the reduced amount of \$101,805 and making the award joint and several as against Tedder and Kent. <u>Right to Recover Attorney Fees:</u> On this motion, Baer now seeks the appellate attorney fees he incurred in connection with the appellate proceeding that resulted in <i>Baer v. Tedder supra</i>. Specifically, when all time spent in connection with this motion (including the time for the reply and the hearing) is added to the time spent on the appeal, Baer seeks a total of \$359,092 in fees based on 455.4 hours of time. As the Court of Appeal explained, “A statute authorizing an award of attorney’s fees in the trial court ordinarily authorizes an award of fees incurred on appeal unless the statute specifically provides otherwise.” (<i>Baer v. Tedder, supra</i>, 115 Cal.App.5th at p. 1150.) Indeed, the court noted, “[I]t is established that fees, if recoverable at all—pursuant either to statute or parties’ agreement— are available for services at trial and on appeal.” (<i>Id.</i> quoting <i>Serrano v. Unruh</i> (1982) 32 Cal.3d 621, 637.) As the court concluded, “Sections 2023.030(a) and 2031.320(b) authorize recovery of attorney’s fees and do not specifically preclude recovery of attorney’s fees on appeal. [Citation.] Sections 2023.030(a) and 2031.320(b)
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therefore authorized Baer's recovery of attorney's fees expended in connection with the appeal of the sanctions order." (*Baer v. Tedder, supra*, 115 Cal.App.5th at p. 1151.)

"Awarding appellate attorney's fees under sections 2023.030(a) and 2031.320(b) is necessary to ensure their remedial and compensatory purposes are satisfied. An appeal of an award of monetary sanctions forces the litigant awarded those sanctions to incur yet more attorney's fees to preserve an award intended as compensation for expenses incurred as a result of the sanctioned litigant's misuse of the discovery process. An award of appellate attorney's fees therefore would be necessary to provide full compensation to the litigant awarded sanctions. If sections 2023.030(a) and 2031.320(b) did not authorize recovery of appellate attorney's fees, a sanctioned party could defeat the purpose of the sanctions by forcing the party awarded sanctions to incur the cost of an appeal." (*Baer v. Tedder, supra*, 115 Cal.App.5th at p. 1152.)

The same rationale supports an award of attorney fees on the second appeal that resulted in the opinion of *Baer v. Tedder, supra*. Kent argues this rationale does not support a second award of attorney fees against him because he did not appeal the fee award that led to the second appeal because the trial court decision was in his favor—i.e., it did not award fees against him. Indeed, he argues he was the one that was forced to incur appellate attorney fees. This argument, however, ignores the Court of Appeal concluded the trial court erred and therefore directed the trial court to issue a new order holding Kent jointly and severally liable for the attorney fees on the first appeal. As the Court of Appeal explained, the right to recover attorney fees as a monetary discovery sanction arises out of the initial, underlying discovery abuse. The party subject to that abuse (here, Baer) is entitled to recover all attorney fees he reasonably incurred as a result of that initial discovery abuse. (*Baer v. Tedder, supra*, 115 Cal.App.5th at p. 1152.) That right extends to the second appeal that was required for Baer to enforce his right to recover the attorney fees incurred on the first appeal against Kent. Accordingly, the court concludes Baer is entitled to recover the attorney fees he incurred on the second appeal from both Tedder and Kent, jointly and severally.

Amount of Attorney Fees: As the Court of Appeal explained, "Lodestar is the presumptive method for calculating the amount of an attorney's fees award.

[Citation.] '[T]he lodestar is the basic fee for comparable legal services in the community.' [Citation.] Lodestar has two components: (1) the number of hours reasonably expended and (2) the reasonable hourly rate of the legal professional. Lodestar is 'the number of hours reasonably expended multiplied by the reasonable hourly rate.' [Citation.] The lodestar figure may then be adjusted, based on a consideration of various factors, 'to fix the fee at the fair market value for the legal services provided.' [Citation.]" (*Baer v. Tedder, supra*, 115 Cal.App.5th at p. 1154.)

As stated above, on the prior appellate fee motion, the trial court awarded Baer \$113,532.50 based on 148.3 hour and hourly rates ranging between \$550 to \$975. The appellate court arrived at its reduced award of \$101,805 by reducing the number of hours allowed for the fee motion from 31.9 hours to 25 hours, and the hourly rate for the attorney who prepared the fee motion from \$975 to 775. (*Baer v. Tedder, supra*, 115 Cal.App.5th at pp. 1154, 1157-1158, 1161.)

Hourly Rates: The court must start by acknowledging Baer seeks to recover fees based on hourly rates that were neither his attorneys' customary hourly rates at the time the services were rendered (at least for the two main attorneys) nor the hourly rates used to bill Baer for the services rendered.

The hourly rates Baer seeks for the partner on the appeal and the primary associate on the appeal are based on the hourly rates that were used when the partner left a much larger international firm and joined a smaller, but still significant and well-respected firm. Specifically, Baer asks the court to use the \$1,000 hourly rate that was Mr. Pugh's customary rate when he left Holland & Knight even though that was not the customary hourly rate he charged when he performed the work on the appeal as a partner with his current firm, Newmeyer & Dillon. Similarly, Baer asks the court to use a \$775 hourly rate for associate M. Brunson because that was the hourly rate Holland & Knight customarily charged for associates with similar experience. That rate is sought even though M. Brunson never worked for Holland & Knight. Baer also seeks the Holland & Knight rate of \$825 for N. Dellefave, who performed only a few hours of work on the appeal, but who was an associate with Holland & Knight when he performed the work and that was his customary rate. For all other attorneys and paralegals who worked on the appeal, fees are sought based on their

	customary hourly rate as employees of Newmeyer & Dillon when they performed the work. A review of the billing statements submitted in support of the motion also reveals the rates Baer acknowledges are the customary hourly rates for all attorneys at Newmeyer & Dillon who worked on the appeal are not the hourly rates he was charged. As explained by counsel, Baer is a longtime client of the lead partner on the case (Mr. Pugh), and based on that relationship and repeat business, Mr. Pugh has negotiated a reduced rate with Baer. When Mr. Pugh joined Newmeyer & Dillon, it was agreed Baer would continue to be billed at the reduce rate. As the Court of Appeal explained, ““The reasonable market value of the attorney’s services is the measure of a reasonable hourly rate. [Citations.] This standard applies regardless of whether the attorneys claiming fees charge nothing for their services, charge at below-market or discounted rates, represent the client on a straight contingent fee basis, or are in-house counsel.”” [Citation.] ‘It is well established that an attorney who accepts a reduced rate from a client is not precluded from seeking a reasonable hourly rate pursuant to the lodestar method.’ [Citation.] ‘[A] trial court has discretion to award an hourly rate under the lodestar method that exceeds the rate that was actually incurred or paid.’ [Citations.]” (<i>Baer v. Tedder, supra</i>, 115 Cal.App.5th at p. 1159.) ““The reasonable hourly rate is that prevailing in the community for similar work.’ [Citation.] ““The reasonable market value of the attorney’s services is the measure of a reasonable hourly rate.”” [Citation.] The hourly rate set by the trial court must be ‘within the range of reasonable rates charged by and judicially awarded comparable attorneys for comparable work.’ [Citation.]” <i>Baer v. Tedder, supra</i>, 115 Cal.App.5th at p. 1159.) Baer asks the court to use the higher, customary hourly rates from Holland & Knight because those rates were approved by the trial court and the Court of Appeal on the prior appeal. Although those rates are evidence of what is a reasonable hourly rate in this community, their prior approval does not bind this court to use those rates. Indeed, there are a host of factors that go into determining a reasonable hourly rate for a particular attorney in a particular case. When we talk about reasonable hourly rates we talk about a range of rates because attorneys have different levels of experience and different expertise, different firms have different overhead expenses and billing
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	methods, etc. Hence, just like this court is not bound to use the hourly rate at which Baer was charged, it also is not bound to use the hourly rates that were charged by an attorney when he was with a different firm or that firm's rates for attorneys that never worked at that firm. Moreover, what an attorney customarily charged for work during the time period for which he seeks compensation is very compelling evidence of what he thinks the reasonable hourly rate for his service is during that period. Based on the court's review of the moving papers, including the declaration regarding the education and experience of the attorneys, the nature of the case, the work performed, and the court's experience in this community, the court finds the reasonable hourly rates for all professionals seeking time for services rendered on behalf of Baer to be their actual, customary rate at the time the specific services were rendered. For Mr. Pugh, that means rates ranging from \$815 to \$895 (even though he billed Baer at \$595 and requested \$1,000). For N. Dellefave, that means at rate of \$825. For M. Brunson, that means rates ranging from \$405 to \$445 (even though she billed Baer at \$365 and sought \$775). For J. Walther, that means at rate of \$430 (even though he billed Baer at \$380). For M. Munro, that means a rate of \$395 (and there was no information about the rate he actually billed to Baer). For paralegal A. Monroy, that means a rate of \$325 (and there was no information about the rate she actually billed to Baer). <u><i>Hours Reasonably Expended:</i></u> Baer seeks compensation for a total of 455.2 hour of attorney and paralegal time. That includes 330.9 hours spent on the appeal, 99.3 hours preparing this motion, and 25 hours preparing the reply for this motion and preparing for and attending the hearing. Baer contends this very significant number of hours is appropriate for a number of reasons, including (1) the appeal was a consolidation of two appeals and therefore Baer had to prepare two briefs rather than just one, (2) Baer had to expend additional time due various briefing violations by Tedder and Kent, (3) Tedder and Kent employed a "kitchen sink" strategy in which they asserted a very large number of argues that were meritless but nonetheless had to be addressed, and (4) the appeal presented novel issues. Although these reasons all are true to varying degrees, they nonetheless do no justify the extremely large number of hours Baer seeks. For example, Baer was required to file
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	both and opening brief and a combined reply and cross-respondent's brief, but Kent's Respondent's brief made essential the identical arguments as Tedder's Cross-Appellant's brief. Moreover, many of those arguments were fairly quickly resolved. The court has reviewed the appellate briefs and the Court of Appeal opinion, all the papers filed in support of this motion (including the billing statements), and the file in this case. Based on its experience and the governing law the court finds the number of hours to be excessive. For example, Baer seeks 99.3 hours just for preparing the moving papers on this motion, and then an additional 25 hours for preparing the reply and attending the hearing. On the prior appeal, Baer sought 31.9 hours for the fee motion. The Court of Appeal found that excessive and reduced it to 25 hours. The motion for attorney fees on the first appeal is similar to this motion, but now Baer has the benefit of the Court of Appeal opinion resolving his entitlement to fees. On the current motion, Baer has prepared a more extensive motion and supporting declaration and provided a copy of nearly all the documents from the prior appeal. That, however, does not render the 124.3 hours being sought reasonable. The court finds a more reasonable number of hours to be approximately 40 hours, which includes approximately 20 hours for Branson, 10 hours Munro, 5 hours for Pugh, and 5 hours for Monroy. For the appeal itself, Baer seeks a total of 330.9 hours which includes 130.4 hours to research and draft the opening brief and 139.7 hour to review Tedder and Kent's combined brief, research the issues it presented, and draft Baer's combined reply and cross-respondent's brief. The prior appeal in total consumed 116.9 hours, which admittedly involved only a single brief and issues to be confronted as a respondent. Nonetheless, the contrast is stark, especially given that Tedder and Kent's brief in the first appeal suffered from some of the same briefing violations as their briefs on the second appeal. The court finds approximately 100 hours to research and draft the opening brief, and approximately 100 hours to review Tedder and Kent's combined brief, research the issues it presented, and draft Baer's combined reply and cross-respondent's brief to be a more reasonable number of hours. The court finds all other time spent on the appeal to be reasonable.
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The foregoing results in a reduction of approximately 84 hours from the time sought in 2026 relating to this motion, approximately 30 hours from the time sought in 2024 for the opening brief, and approximately 40 hours from the time sought in 2025 for the combined reply and cross-respondent's brief.

The following summarizes the hours the court approves and finds reasonable for each professional during each of the relevant years and the total hours and fees.

Attorney/ Year	Hourly Rate	Hours Billed	Hours Awarded	Fees Awarded
B.P./2024	\$815	54.1	40	\$32,600
B.P./2025	\$855	56.6	40	\$34,200
B.P./2026	\$895	17.8	8	\$7,160
N.D./2024	\$825	6.8	6.8	\$5,610
M.B./2024	\$405	94.9	80	\$32,400
M.B./2025	\$425	114.4	90	\$38,250
M.B./2026	\$445	70.2	20	\$8,900
J.W./2024	\$430	1.5	0	\$0
M.M./2026	\$395	30.6	10	\$3,095
A.M./2026	\$325	8.5	5	\$1,625
TOTAL		455.4	299.8	\$163,840

In the opposition, Tedder and Kent assert a variety of challenges to the amount of attorney fees being sought. Some of them are simply inaccurate, such as the assertion Baer failed to present time records. Others are duplicative of arguments Tedder and Kent made on the prior appeal and that the Court of Appeal already rejected. Regardless, other than the assertion some of the fees and hourly rates are excessive, the court is not persuaded by any of the arguments asserted in the opposition, including the contention the motion should be denied because Baer failed to allocate the time spent between issues relating to Tedder and issues relating to Kent. The court finds the issues were sufficiently intertwined such as to make allocation impracticable. Indeed, even a review of the index to Tedder and Kent's combined respondent's and cross-appellant's brief reveals they made many of the same arguments.

Conclusion: Based on the foregoing, the motion is **GRANTED**. Baer is awarded \$163,840 in attorney fees jointly and severally against Tedder and Kent in connection with the appeal that resulted in *Baer v. Tedder, supra*, and this motion

Baer's counsel is ordered to give notice of this ruling.

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